# HOW TO REPORT A CLAIM

**How to report a new claim:**

- **Email:** **newclaims@markel.com**
- **FAX:** **(855) 662-7535 (855) 6MARKEL**
- ***Phone:** **(800) 362-7535 (800) 3MARKEL**
- **Mail:** **P.O. Box 2009, Glen Allen, VA 23058-2009**

Please complete the appropriate ACORD form in detail and include the name and phone number of the contact person at the location of the reported incident. If possible, please attach a copy of the facility incident report. When reporting an auto claim, please identify the unit # on the schedule along with the VIN#. If the loss/claim involves a building or damage to property, please provide the physical address of the property.

***Please refer to your specific policy language for new claim reporting requirements. Some policies require you to report all claims in writing only.**

**How to send Supplemental Information / Questions on an existing claim:**

- **Email:** **markelclaims@markel.com**
- **FAX:** **(855) 662-7535 (855) 6MARKEL**
- **Phone:** **(800) 362-7535 (800) 3MARKEL**
- **Mail:** **P.O. Box 2009, Glen Allen, VA 23058-2009**

**If you have questions about a claim, please call 1-800-362-7535.**

**Inquiries may also be faxed to 1-855-662-7535.**

# PRIVACY NOTICE

U. S. Consumer Privacy Notice Rev. 1/1/2020

| FACTS | WHAT DOES MARKEL GROUP OF COMPANIES REFERENCED BELOW (INDIVIDUALLY OR COLLECTIVELY REFERRED TO AS "WE", "US", OR "OUR") DO WITH YOUR PERSONAL INFORMATION? |
|---|---|
| Why? | In the course of Our business relationship with you, We collect information about you that is necessary to provide you with Our products and services. We treat this information as confidential and recognize the importance of protecting it. Federal and state law gives you the right to limit some but not all sharing of your personal information. Federal and state law also requires Us to tell you how We collect, share, and protect your personal information. Please read this notice carefully to understand what We do. |
| What? | The types of personal information We collect and share depend on the product or service you have with Us. This information can include:<br>• your name, mailing and email address(es), telephone number, date of birth, gender, marital or family status, identification numbers issued by government bodies or agencies (i.e.: Social Security number or FEIN, driver's license or other license number), employment, education, occupation, or assets and income from applications and other forms from you, your employer and others;<br>• your policy coverage, claims, premiums, and payment history from your dealings with Us, Our Affiliates, or others;<br>• your financial history from other insurance companies, financial organizations, or consumer reporting agencies, including but not limited to payment card numbers, bank account or other financial account numbers and account details, credit history and credit scores, assets and income and other financial information, or your medical history and records.<br>Personal information does not include:<br>• publicly-available information from government records;<br>• de-identified or aggregated consumer information.<br>When you are no longer Our customer, We continue to share your information as described in this Notice as required by law. |
| How? | All insurance companies need to share customers' personal information to run their everyday business. In the section below, We list the reasons financial companies can share their customers' personal information; the reasons We choose to share; and whether you can limit this sharing. We restrict access to your personal information to those individuals, such as Our employees and agents, who provide you with insurance products and services. We may disclose your personal information to Our Affiliates and Nonaffiliates (1) to process your transaction with Us, for instance, to determine eligibility for coverage, to process claims, or to prevent fraud, or (2) with your written authorization, or (3) otherwise as permitted by law. We do not disclose any of your personal information, as Our customer or former customer, except as described in this Notice. |

| Reasons We can share your personal information | Do We share? | Can you limit this sharing? |
|---|---|---|
| **For Our everyday business purposes and as required by law –**<br>such as to process your transactions, maintain your account(s), respond to court orders and legal/regulatory investigations, to prevent fraud, or report to credit bureaus | Yes | No |
| **For Our marketing purposes –**<br>to offer Our products and services to you | Yes | No |
| **For Joint Marketing with other financial companies** | Yes | No |
| **For Our Affiliates' everyday business purposes –**<br>information about your transactions and experiences | Yes | No |
| **For Our Affiliates' everyday business purposes –**<br>information about your creditworthiness | No | We don't share |
| **For Our Affiliates to market you** | No | We don't share |
| **For Nonaffiliates to market you** | No | We don't share |
| **Questions?** Call (888) 560-4671 or email privacy@markel.com | | |

| Who We are | |
|---|---|
| **Who is providing this Notice?** | A list of Our companies is located at the end of this Notice. |

| What We do | |
|---|---|
| **How do We protect your personal information?** | We maintain reasonable physical, electronic, and procedural safeguards to protect your personal information and to comply with applicable regulatory standards. For more information, visit www.markel.com/privacy-policy. |
| **How do We collect your personal information?** | We collect your personal information, for example, when you<br>• complete an application or other form for insurance<br>• perform transactions with Us, Our Affiliates, or others<br>• file an insurance claim or provide account information<br>• use your credit or debit card<br>We also collect your personal information from others, such as consumer reporting agencies that provide Us with information such as credit information, driving records, and claim histories. |
| **Why can't you limit all sharing of your personal information?** | Federal law gives you the right to limit only<br>• sharing for Affiliates' everyday business purposes – information about your creditworthiness<br>• Affiliates from using your information to market to you<br>• sharing for Nonaffiliates to market to you<br>State laws and individual companies may give you additional rights to limit sharing. See the Other Important Information section of this Notice for more on your rights under state law. |

| Definitions | |
|---|---|
| **Affiliates** | Companies related by common ownership or control. They can be financial and nonfinancial companies.<br>• Our Affiliates include member companies of Markel Group. |
| **Nonaffiliates** | Companies not related by common ownership or control. They can be financial and nonfinancial companies.<br>• Nonaffiliates that We can share with can include financial services companies such as insurance agencies or brokers, claims adjusters, reinsurers, and auditors, state insurance officials, law enforcement, and others as permitted by law. |
| **Joint Marketing** | A formal agreement between Nonaffiliated companies that together market financial products or services to you.<br>• Our Joint Marketing providers can include entities providing a service or product that could allow Us to provide a broader selection of insurance products to you. |

| **Other Important Information** |
|---|
| **For Residents of AZ, CT, GA, IL, ME, MA, MN, MT, NV, NJ, NC, OH, OR, and VA:** Under state law, under certain circumstances you have the right to access and request correction, amendment or deletion of personal information that We have collected from or about you. To do so, contact your agent, visit www.markel.com/privacy-policy, call (888) 560-4671, or write to Markel Corporation Privacy Office, 4521 Highwoods Parkway, Glen Allen, VA 23060.<br>We may charge a reasonable fee to cover the costs of providing this information. We will let you know what actions We take. If you do not agree with Our actions, you may send Us a statement. |
| **For Residents of CA:** You have the right to review, make corrections, or delete your recorded personal information contained in Our files. To do so, contact your agent, visit www.markel.com/privacy-policy, call (888) 560-4671, or write to Markel Corporation Privacy Office, 4521 Highwoods Parkway, Glen Allen, VA 23060. We do not and will not sell your personal information.<br>For the categories of personal information We have collected from consumers within the last 12 months, please visit: www.markel.com/privacy-policy. |
| **For Residents of MA and ME:** You may ask, in writing, for specific reason, for an adverse underwriting decision. |
| **Markel Group of Companies Providing This Notice:** City National Insurance Company, Essentia Insurance Company, Evanston Insurance Company, FirstComp Insurance Company, Independent Specialty Insurance Company, National Specialty Insurance Company, Markel Bermuda Limited, Markel American Insurance Company, Markel Global Reinsurance Company, Markel Insurance Company, Markel International Insurance Company Limited, Markel Service, Incorporated, Markel West, Inc. (d/b/a in CA as Markel West Insurance Services), Pinnacle National Insurance Company, State National Insurance Company, Inc., Superior Specialty Insurance Company, SureTec Agency Services, Inc. (d/b/a in CA as SureTec Agency Insurance Services), SureTec Indemnity Company, SureTec Insurance Company, United Specialty Insurance Company, Inc. |

# CALIFORNIA INSURANCE SUPPLEMENT

## CALIFORNIA DEPARTMENT OF INSURANCE
## RACE, NATIONAL ORIGIN & GENDER FORM

### COMMUNITY SERVICE STATEMENT

Markel Insurance Company

Company Name

# _____ Policyholder Number (For New Business Only)

This information is requested by the State of California in order to monitor the insurer's compliance with the law. All new policyholders are requested to voluntarily provide the following information.

***No such information shall be used for the purposes of underwriting or rating any policyholder.***

Policyholder's Name and Address (to be provided in order to refer back to the policy)
Note: Use additional forms if needed.

Markoff Structural Pest Control Company
6018 Mission Street
Daly City, CA 94014

**Policy Type**

- [ ] Fire - Personal
- [ ] Fire - Commercial
- [ ] Homeowners
- [X] Commercial Multi Peril
- [ ] Private Passenger Auto Liability

- [ ] *If the policyholder does not wish to provide the Department of Insurance with this information, please check here.*

Check the Race or National Origin as it applies to the policyholder(s). For the purpose of completing this form, the policyholder is defined as: an individual, spouse, domestic partner, or business partner(s) named on the policy.

| | Policyholder | | | Co-Policyholder | | |
|---|---|---|---|---|---|---|
| **Race/National Origin** | Male | Female | Business | Male | Female | Business |
| **African-American** | ☐ | ☐ | ☐ | ☐ | ☐ | ☐ |
| **American Indian or Alaskan Native** | ☐ | ☐ | ☐ | ☐ | ☐ | ☐ |
| **Asian / Pacific Islander** | ☐ | ☐ | ☐ | ☐ | ☐ | ☐ |
| **Latino** | ☐ | ☐ | ☐ | ☐ | ☐ | ☐ |
| **White** | ☐ | ☐ | ☐ | ☐ | ☐ | ☐ |
| **Other** | ☐ | ☐ | ☐ | ☐ | ☐ | ☐ |


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# Markel Insurance Company

## CALIFORNIA PREMIUM REFUND DISCLOSURE NOTICE

In accordance with CAL. INS. CODE § 481.(c), we are notifying you that in the event that the first Named Insured cancels the insurance policy, we may retain 10% of the unearned premium. The premium refunded to you will therefore be calculated as 90% of the pro rata unearned premium. But if cancellation takes place during the first year of a multiyear prepaid policy, we will return 90% of the pro rata unearned premium for the first year and the full annual premium for the subsequent years.

However, the penalties set forth in the preceding paragraph will not apply under the following circumstances, even if the first Named Insured cancels the policy:

1. The Insured(s) no longer has a financial or insurable interest in the property or business operation that is the subject of insurance;
2. Cancellation takes place after the first year for a prepaid policy written for a term of more than one year; or
3. The policy is rewritten in the same insuring company or company group.


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# MARKEL INSURANCE COMPANY

## CALIFORNIA FRAUD WARNING
## ADVISORY NOTICE TO POLICYHOLDERS

For your protection, California law requires that you be advised of the following:

Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.

A STOCK COMPANY




**Markel Insurance Company**
10275 West Higgins Road, Suite 750
Rosemont, IL 60018
(800) 431-1270

**INSURANCE POLICY**

**Coverage afforded by this policy is provided by the Company (Insurer) and named in the Declarations.**

In **Witness Whereof**, the company (insurer) has caused this policy to be executed and attested and countersigned by a duly authorized representative of the company (insurer) identified in the Declarations.

Kathleen Anne Sturgeon

**Secretary**

**President**

# Markel Insurance Company

## EXCESS/UMBRELLA DECLARATIONS

POLICY NUMBER: PCU27807-02 RENEWAL OF POLICY: PCU27807-01

Named Insured and Mailing Address:
Markoff Structural Pest Control Company
6018 Mission Street
Daly City, CA 94014

Policy Period From: 10/20/25 To: 10/20/26
At 12:01 a.m. standard time at your mailing address shown above

This policy provides ☒ Excess Liability coverage only or ☐ Umbrella Liability coverage only.

***Only the policy provisions applicable to the type of coverage checked in the above box will apply. Please refer to the appropriate sections of the policy for what is and is not covered according to coverage type.***

**IN RETURN FOR THE PAYMENT OF THE PREMIUM AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.**

Policy Premium: $ 5,638.00

☒ Direct Billed ☐ Agency Billed

Limits of Insurance:

| | |
|---|---|
| General Aggregate | $ $5,000,000 |
| Products-Completed Operations Aggregate | $ $5,000,000 |
| Each Occurrence | $ $5,000,000 |
| Each Person - Personal And Advertising Injury | $ $5,000,000 |
| Self-Insured Retention – Each Occurrence | $ $10,000 |

**THIS POLICY PROVIDES CLAIMS-MADE COVERAGE FOR THE UNDERLYING INSURANCE SHOWN AS CLAIMS-MADE IN THE SCHEDULE OF UNDERLYING INSURANCE. PLEASE READ THE ENTIRE FORM CAREFULLY.**

This insurance does not apply to Coverage A – Bodily Injury And Property Damage Liability and Coverage B – Personal And Advertising Injury written under Section II – Umbrella Liability Coverage which occurs before the Retroactive Date shown below. **N/A in New York**

Retroactive Date: Per underlying claims-made coverage
(Enter a date only when one or more underlying insurance coverages are claims-made.)

Producer Number, Name and Mailing Address

92340 Pacific Alliance Insurance Brokerage, Inc.
1753 E. Fir Ave
Fresno, CA 93720

Forms and Endorsements attached to this policy at time of issuance:

See Schedule of Forms and Endorsements

**These declarations, together with the Coverage Form(s) and any Endorsement(s), complete the above numbered policy.**

Issue Date: October 8, 2025 At: Kennesaw, GA By: John K Clark
(Authorized Representative)


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Named Insured: Markoff Structural Pest Control Company Policy Number: PCU27807-02

**EXCESS/UMBRELLA POLICY**
**SCHEDULE OF UNDERLYING INSURANCE**

(An "X" in the Type of Coverage boxes below (☐) indicates these coverages are provided by the underlying policies.)

| Carrier, Policy Number, Policy Period (If Applicable) | Type of Coverage | Underlying Limits of Insurance |
|---|---|---|
| Carrier: Markel Insurance Company<br>Policy Number: PCP27806-02<br>Policy Period: 10/20/25 - 10/20/26 | ☒ Occurrence ☐ Claims-Made<br>☒ Commercial General Liability<br>☐ Liquor liability<br>☐ Corporal Punishment<br>☐<br>☐<br>☐ | $2,000,000 General Aggregate<br>$2,000,000 Products-Completed Operations Aggregate<br>$1,000,000 Each Occurrence<br>$1,000,000 Personal and Advertising Injury - Each Person or Organization |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Occurrence ☐ Claims-Made<br>☐ Professional Liability | $ Each Wrongful Act<br>$ Aggregate |
| Carrier: Markel Insurance Company<br>Policy Number: PCP27806-02<br>Policy Period: 10/20/25 - 10/20/26 | ☐ Occurrence ☒ Claims-Made<br>☒ Employee Benefits Liability | $ 1,000,000 Each Employee<br>$ 2,000,000 Aggregate |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Occurrence ☐ Claims-Made<br>☐ Liquor Liability | $ Each Common Cause<br>$ Aggregate |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Stop Gap - Employers Liability | $ Bodily Injury By Accident<br>$ Bodily Injury By Disease – Each Person<br>$ Bodily Injury By Disease – Policy Limit |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Business Automobile Liability<br>☐ Owned Automobiles<br>☐ Non-Owned Automobiles<br>☐ Hired Automobiles | $ Each Accident |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Auto Dealer Liability<br>☐ Owned Automobiles<br>☐ Non-Owned Automobiles<br>☐ Hired Automobiles | $ Covered Autos Liability - Each Accident<br>$ General Liability Bodily Injury And Property Damage Liability – Each Accident<br>$ Personal And Advertising Injury Liability – Any One Person Or Organization<br>$ General Liability Aggregate<br>$ Products And Work You Performed Aggregate |


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| Carrier, Policy Number, Policy Period (If Applicable) | Type of Coverage | Underlying Limits of Insurance |
|---|---|---|
| Carrier: Palomar Specialty Insurance Company<br>Policy Number: PSIC1278003<br>Policy Period: 05/01/2025 - 05/01/2026 | ☐ Occurrence ☐ Claims-Made<br>☒ Employers Liability | $ 1,000,000 Bodily Injury By Accident<br>$ 1,000,000 Bodily Injury By Disease • Each Person<br>$ 1,000,000 Bodily Injury By Disease • Policy |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Occurrence ☐ Claims-Made<br>☐ | $<br>$<br>$ |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Occurrence ☐ Claims-Made<br>☐ | $<br>$<br>$ |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Occurrence ☐ Claims-Made<br>☐ | $<br>$<br>$ |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Occurrence ☐ Claims-Made<br>☐ | $<br>$<br>$ |
| Carrier:<br>Policy Number:<br>Policy Period: | ☐ Occurrence ☐ Claims-Made<br>☐ | $<br>$<br>$ |


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# Markel Insurance Company
## FORM SCHEDULE

| FORM NUMBER | FORM NAME |
|---|---|
| MDUB 1000 03 14 | Excess/Umbrella Declaration |
| MUB 0001 03 14 | Excess/Umbrella Policy |
| MIL 1214 09 17 | Trade Or Economic Sanctions |
| MUB 315 (08/03) | Unimpaired Aggregate |
| MUB 1359 01 15 | Exclusion of Certified Acts of Terrorism |
| MUB 1362 10 20 | Exclusion - Cyber Incident, Data Compromise, and Violation of Statutes Related To Personal Data |
| MUB 1392 10 19 | Exclusion - Abuse, Molestation, or Exploitation |
| MUB 1400-CA 03 14 | California Amendatory |
| MUB-TERR-2 (01 15) | Confirmation of Exclusion of Certified Acts of Terrorism Coverage - Terrorism Risk Insurance Act |



# Markel Insurance Company

# EXCESS/UMBRELLA POLICY

This explains your EXCESS/UMBRELLA POLICY. The coverages referenced in this policy are:

EXCESS LIABILITY COVERAGE
UMBRELLA LIABILITY COVERAGE

No obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under:

**1.** The insuring agreements applicable to these coverages; or

**2.** The Supplementary Payments.

These coverages are subject to exclusions or provisions that restrict coverage. The amount we will pay is limited as described under Section **VI** - Limits Of Insurance. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout the policy the words “you” and “your” refer to the Named Insured shown in the Declarations and any other person or organization qualifying as a Named Insured under this policy. The words “we”, “us”, and “our” refer to the company providing this insurance.

The word “insured” means any person or organization qualifying as such under Section **V** - Who Is An Insured.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section **VIII** - Definitions for their explanation.

## SECTION I - EXCESS LIABILITY COVERAGE

### 1. Insuring Agreement

We will pay on behalf of the insured the “ultimate net loss” in excess of the “retained limit” because of “bodily injury”, “property damage” and “personal and advertising injury” covered by the “underlying insurance”.

Except as specifically provided in this policy, insurance afforded by Excess Liability Coverage is subject to definitions, terms, conditions, exclusions and limitations contained in the “underlying insurance” except any definition, term or condition relating to:

**a.** Transfer Of Rights Of Recovery Against Others To Us (Subrogation);

**b.** Other Insurance;

**c.** Supplementary Payments and obligation to investigate or defend;

**d.** Amounts of insurance; or

**e.** Limits Of Insurance.

### 2. Exclusions

This insurance does not apply to Medical Expense or Medical Payments coverages as described in the “underlying insurance”.


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## SECTION II - UMBRELLA LIABILITY COVERAGE

### COVERAGE A - BODILY INJURY AND PROPERTY DAMAGE LIABILITY

**1. Insuring Agreement**

**a.** We will pay on behalf of the insured the “ultimate net loss” in excess of the “retained limit” because of “bodily injury” or “property damage” to which this insurance applies. We will have the right and duty to defend the insured against any “suit” seeking those damages when the “underlying insurance” does not provide coverage or the limits of “underlying insurance” have been exhausted. When we have no duty to defend, we will have the right to defend, or to participate in the defense of, the insured against any other “suit” seeking damages to which this insurance may apply. However, we will have no duty to defend the insured against any “suit” seeking damages for “bodily injury” or “property damage” to which this insurance does not apply. We may, at our discretion, investigate any “occurrence” that may involve this insurance and settle any claim or “suit” for which we have the duty to defend that may result. But:

**(1)** The amount we will pay for the “ultimate net loss” is limited as described in Section **VI** - Limits Of Insurance; and

**(2)** Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages **A** or **B**.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under the Supplementary Payments section of this policy.

**b.** This insurance applies to "bodily injury" or "property damage" that is subject to an applicable "retained limit". If any other limit, such as a sublimit, is specified in the "underlying insurance", this insurance does not apply to "bodily injury" or "property damage" arising out of that exposure unless that limit is specified in the Declarations under the Schedule Of Underlying Insurance.

**c.** This insurance applies to “bodily injury” and “property damage” only if:

**(1)** The “bodily injury” or “property damage” is caused by an “occurrence” that takes place in the “coverage territory”; and

**(2)** The “bodily injury” or “property damage” occurs during the policy period; and

**(3)** Prior to the policy period, no insured listed under Paragraph **2.a.** of Section **V** - Who Is An Insured and no “employee” authorized by you to give or receive notice of an “occurrence” or claim, knew that the “bodily injury” or “property damage” had occurred, in whole or in part. If such a listed insured or authorized “employee” knew, prior to the policy period, that the “bodily injury” or “property damage” occurred, then any continuation, change or resumption of such “bodily injury” or “property damage” during or after the policy period will be deemed to have been known prior to the policy period.

**d.** “Bodily injury” or “property damage” which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph **2.a.** of Section **V** - Who Is An Insured or any “employee” authorized by you to give or receive notice of an “occurrence” or claim, includes any continuation, change or resumption of that “bodily injury” or “property damage” after the end of the policy period.

**e.** “Bodily injury” or “property damage” will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph **2.a.** of Section **V** - Who Is An Insured or any “employee” authorized by you to give or receive notice of an “occurrence” or claim:

**(1)** Reports all, or any part, of the “bodily injury” or “property damage” to us or any other insurer;

**(2)** Receives a written or verbal demand or claim for damages because of the “bodily injury” or “property damage”; or

**(3)** Becomes aware by any other means that “bodily injury” or “property damage” has occurred or has begun to occur.

**f.** Damages because of “bodily injury” include damages claimed by any person or organization for care, loss of services or death resulting at any time from the “bodily injury”.

**g. Underlying Claims-Made Policy**

The following applies to any “underlying insurance” written on a claims-made basis and listed in the Schedule Of Underlying Insurance:


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**(1)** This insurance shall follow the insuring agreement, exclusions, definitions, conditions and any limitations of such claims-made coverage and any Extended Reporting Period Endorsement(s) attached to the "underlying insurance".

**(2)** Paragraphs **1.c.(2)**, **1.c.(3)**, **1.d.**, **1.e.** and **1.f.** above are replaced by the following:

**c.** This insurance applies to "bodily injury" and "property damage" only if:

**(2)** The "bodily injury" or "property damage" did not occur before the Retroactive Date shown in the Declarations or after the end of the policy period; and

**(3)** A claim for damages because of the "bodily injury" or "property damage" is first made against an insured in accordance with Paragraph **d.** below, during the policy period or any Extended Reporting Period attached to the "underlying insurance".

**d.** A claim by a person or organization seeking damages will be deemed to have been made at the earlier of the following times:

**(1)** When notice of such claim is received and recorded by any insured or by the "underlying insurer" or us if the limits of the "underlying insurance" have been used up, whichever comes first; or

**(2)** When we make a settlement in accordance with Paragraph **1.a.** above, or settlement is made by the "underlying insurer" with our agreement.

**e.** All claims for damages because of "bodily injury" to the same person, including damages claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury", will be deemed to have been made at the time the first of those claims is made against an insured.

**f.** All claims for damages because of "property damage" causing loss to the same person or organization will be deemed to have been made at the time the first of those claims is made against an insured.

**2. Exclusions**

This insurance does not apply to:

**a. Expected Or Intended Injury**

"Bodily injury" or "property damage" expected or intended injury from the standpoint of the insured. This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

**b. Contractual Liability**

"Bodily injury" or "property damage" for which the insured is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

**(1)** Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract", reasonable attorneys' fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of "bodily injury" or "property damage", provided:

**(a)** Liability to such party, for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and

**(b)** Such attorneys' fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.

**(2)** That the insured would have in the absence of the contract or agreement.

**c. Liquor Liability**

"Bodily injury" or "property damage" for which any insured may be held liable by reason of:

**(1)** Causing or contributing to the intoxication of any person;

**(2)** The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or

**(3)** Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in:


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**(a)** The supervision, hiring, employment, training or monitoring of others by that insured; or

**(b)** Providing or failing to provide transportation with respect to any person that may be under the influence of alcohol;

if the "occurrence" which caused the "bodily injury" or "property damage" involved that which is described in Paragraph **(1), (2)** or **(3)** above.

However, this exclusion applies only if you are in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages. For the purposes of this exclusion, permitting a person to bring alcoholic beverages on your premises for consumption on your premises, whether or not a fee is charged or a license is required for such activity, is not by itself considered the business of selling, serving or furnishing alcoholic beverages.

This exclusion does not apply to the extent that valid "underlying insurance" for the liquor liability risks described above exists or would have existed but for the exhaustion of underlying limits for "bodily injury" and "property damage". To the extent this exclusion does not apply, the insurance provided under this policy for the liquor liability risks described above will follow the same provisions, exclusions and limitations that are contained in the applicable "underlying insurance" unless otherwise directed by this insurance.

**d. Employer's Liability**

"Bodily injury" to:

**(1)** An "employee" of the insured arising out of and in the course of:

**(a)** Employment by the insured; or

**(b)** Performing duties related to the conduct of the insured's business; or

**(2)** The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph **(1)** above.

This exclusion applies whether the insured may be liable as an employer or in any other capacity, and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an "insured contract".

With respect to injury arising out of a "covered auto", this exclusion does not apply to "bodily injury" to domestic "employees" not entitled to workers' compensation benefits. For the purposes of this insurance, a domestic "employee" is a person engaged in household or domestic work performed principally in connection with a residence premises.

This exclusion does not apply to the extent that valid "underlying insurance" for the employer's liability risks described above exists or would have existed but for the exhaustion of underlying limits for "bodily injury". To the extent this exclusion does not apply, the insurance provided under this policy for the employer's liability risks described above will follow the same provisions, exclusions and limitations that are contained in the applicable "underlying insurance" unless otherwise directed by this insurance.

**e. Aircraft Or Watercraft**

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading".

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

**(1)** A watercraft while ashore on premises you own or rent;

**(2)** A watercraft you do not own that is less than 51 feet long and it is not being used to carry persons or property for a charge;

**(3)** Liability assumed under any "insured contract" for the ownership, maintenance or use of aircraft or watercraft;

**(4)** Aircraft that is chartered by, loaned to, or hired by you with a paid crew and not owned by any insured; or


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**(5)** The extent that valid "underlying insurance" for the aircraft or watercraft liability risks described above exists or would have existed but for the exhaustion of underlying limits for "bodily injury" or "property damage". To the extent this exclusion does not apply, the insurance provided under this policy for the aircraft or watercraft risks described above will follow the same provisions, exclusions and limitations that are contained in the applicable "underlying insurance", unless otherwise directed by this insurance.

**f. Racing Activities**

"Bodily injury" or "property damage" arising out of the use of "mobile equipment" or "autos" in, or while in practice for, or while being prepared for, any prearranged professional or organized racing, speed, demolition, or stunting activity or contest.

**g. Damage To Property**

"Property damage" to:

**(1)** Property:

**(a)** You own, rent or occupy; or

**(b)** Owned or transported by the insured and arising out of the ownership, maintenance or use of a "covered auto";

**(2)** Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;

**(3)** Property loaned to you;

**(4)** Personal property in the care, custody or control of the insured;

**(5)** That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or

**(6)** That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraph **(2)** of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you. Paragraphs **(1)(b), (3), (4), (5)** and **(6)** of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraphs **(3)** and **(4)** of this exclusion do not apply to liability assumed under a written Trailer Interchange agreement.

Paragraph **(6)** of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

**h. Damage To Your Work**

"Property damage" to "your work" arising out of it or any part of it and included in the "products-completed operations hazard".

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

**i. Damage To Your Product**

"Property damage" to "your product" arising out of it or any part of it.

**j. Damage To Impaired Property Or Property Not Physically Injured**

"Property damage" to "impaired property" or property that has not been physically injured, arising out of:

**(1)** A defect, deficiency, inadequacy or dangerous condition in "your product" or "your work"; or

**(2)** A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to "your product" or "your work" after it has been put to its intended use.


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**k. Recall Of Products, Work Or Impaired Property**

Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

**(1)** "Your product";

**(2)** "Your work"; or

**(3)** "Impaired property";

if such product, work or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

**l. Personal And Advertising Injury**

"Bodily injury" arising out of "personal and advertising injury".

**m. Professional Services**

"Bodily injury" or "property damage" due to rendering of or failure to render any professional service.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage", involved the rendering or failure to render any professional service.

This exclusion does not apply to the extent that valid "underlying insurance" for professional services exists or would have existed but for the exhaustion of underlying limits for "bodily injury" and "property damage". To the extent this exclusion does not apply, the insurance provided under this policy for professional services risks described above will follow the same provisions, exclusions and limitations that are contained in the applicable "underlying insurance" unless otherwise directed by this insurance.

**n. Access Or Disclosure Of Confidential Or Personal Information And Data-related Liability**

Damages arising out of:

**(1)** Any access to or disclosure of any person's or organization's confidential or personal information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of nonpublic information; or

**(2)** The loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.

This exclusion applies even if damages are claimed for notification costs, credit monitoring expenses, forensic expenses, public relations expenses or any other loss, cost or expense incurred by you or others arising out of that which is described in Paragraph **(1)** or **(2)** above.

However, unless Paragraph **(1)** above applies, this exclusion does not apply to damages because of "bodily injury".

As used in this exclusion, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with any type of electronically controlled equipment.

**COVERAGE B - PERSONAL AND ADVERTISING INJURY LIABILITY**

**1. Insuring Agreement**

**a.** We will pay on behalf of the insured the "ultimate net loss" in excess of the "retained limit" because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages when the "underlying insurance" does not provide coverage or the limits of "underlying insurance" have been exhausted. When we have no duty to defend, we will have the right to defend, or to participate in the defense of, the insured against any other "suit" seeking damages to which this insurance may apply. However, we will have no duty to defend the insured against any "suit" seeking damages for "personal and advertising injury" to which this insurance does not apply. At our discretion, we may investigate any offense that may involve this insurance and settle any claim or "suit" for which we have the duty to defend, that may result. But:


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**(1)** The amount we will pay for the “ultimate net loss” is limited as described in Section **VI** - Limits Of Insurance; and

**(2)** Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages **A** or **B**.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under the Supplementary Payments section of this policy.

**b.** This insurance applies to "personal and advertising injury" that is subject to an applicable "retained limit". If any other limit, such as a sublimit, is specified in the "underlying insurance", this insurance does not apply to "personal and advertising injury" arising out of that exposure unless that limit is specified in the Declarations under the Schedule Of Underlying Insurance.

**c.** This insurance applies to “personal and advertising injury” caused by an offense arising out of your business but only if the offense was committed in the “coverage territory” during the policy period.

**d. Underlying Claims-Made Policy**

The following applies to any “underlying insurance” written on a claims-made basis and listed in the Schedule Of Underlying Insurance:

**(1)** This insurance shall follow the insuring agreement, exclusions, definitions, conditions and any limitations of such claims-made coverage and any Extended Reporting Period Endorsement(s) attached to the “underlying insurance”.

**(2)** Paragraph **1.c.** above is replaced by the following:

**c.** This insurance applies to “personal and advertising injury” caused by an offense arising out of your business, but only if:

**(1)** The offense was committed in the “coverage territory”;

**(2)** The offense was not committed before the Retroactive Date shown in the Declarations or after the end of the policy period; and

**(3)** A claim for damages because of the “personal and advertising injury” is first made against any insured, in accordance with Paragraph **d.(2)** below, during the policy period or any Extended Reporting Period attached to the “underlying insurance”.

**(3)** The following is added to Paragraph **1.** above:

A claim made by a person or organization seeking damages will be deemed to have been made at the earlier of the following times:

**(1)** When notice of such claim is received and recorded by any insured or by the “underlying insurer” or us if the limits of the “underlying insurance” have been used up, whichever comes first; or

**(2)** When we make settlement in accordance with Paragraph **1.a.** above or settlement is made by the “underlying insurer” with our agreement.

All claims for damages because of “personal and advertising injury” to the same person or organization as a result of an offense will be deemed to have been made at the time the first of those claims is made against any insured.

**2. Exclusions**

This insurance does not apply to “personal and advertising injury”:

**a. Knowing Violation Of Rights Of Another**

Caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict “personal and advertising injury”.

**b. Material Published With Knowledge Of Falsity**

Arising out of oral or written publication, in any manner, of material, if done by or at the direction of the insured with knowledge of its falsity.

**c. Material Published Prior To Policy Period**


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Arising out of oral or written publication, in any manner, of material whose first publication took place before the beginning of the policy period or the Retroactive Date shown in the Declarations.

**d. Criminal Acts**

Arising out of a criminal act committed by or at the direction of the insured.

**e. Contractual Liability**

For which the insured has assumed liability in a contract or agreement. This exclusion does not apply to:

**(1)** Liability for damages that the insured would have in the absence of the contract or agreement; and

**(2)** Liability for false arrest, detention, or imprisonment assumed in a contract or agreement.

**f. Underlying Insurance**

Arising out of an offense not covered by "underlying insurance" or that would be covered except for the exhaustion of the underlying limits of insurance.

**g. Breach Of Contract**

Arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".

**h. Quality Or Performance Of Goods – Failure To Conform To Statements**

Arising out of the failure of goods, products or services to conform with any statements of quality or performance made in your "advertisement".

**i. Wrong Description Of Prices**

Arising out of the wrong description of the price of goods, products or services stated in your "advertisement".

**j. Insureds In Media And Internet Type Businesses**

Committed by an insured whose business is:

**(1)** Advertising, broadcasting, publishing or telecasting;

**(2)** Designing or determining content of websites for others; or

**(3)** An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs **a., b.** and **c.** of "personal and advertising injury" under the Definitions section.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

**k. Infringement Of Copyright, Patent, Trademark Or Trade Secret**

Arising out of the infringement of copyright, patent, trademark, service mark, trade name, trade secret or other intellectual property rights. Under this exclusion, such other intellectual property rights do not include the use of another's advertising idea in your "advertisement".

However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.

**l. Electronic Chatrooms Or Bulletin Boards**

Arising out of an electronic chatroom or bulletin board the insured hosts, owns, or over which the insured exercises control.

**m. Unauthorized Use Of Another's Name Or Product**

Arising out of the unauthorized use of another's name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

**n. Professional Services**

Arising out of the rendering or failure to render any professional service.


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This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the offense which caused the "personal and advertising injury", involved the rendering of or failure to render any professional service.

This exclusion does not apply to the extent that valid "underlying insurance" for professional services exists or would have existed but for the exhaustion of underlying limits for "personal and advertising injury". To the extent this exclusion does not apply, the insurance provided under this policy for professional services risks described above will follow the same provisions, exclusions and limitations that are contained in the "underlying insurance" unless otherwise directed by this insurance.

**o. Access Or Disclosure Of Confidential Or Personal Information**

"Personal and advertising injury" arising out of any access to or disclosure of any person's or organization's confidential or personal information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of nonpublic information.

This exclusion applies even if damages are claimed for notification costs, credit monitoring expenses, forensic expenses, public relations expenses or any other loss, cost or expense incurred by you or others arising out of any access to or disclosure of any person's or organization's confidential or personal information.

**SECTION III - SUPPLEMENTARY PAYMENTS APPLICABLE TO SECTIONS I AND II**

If a claim is made or "suit" is brought for damages covered under Excess Liability Coverage or Umbrella Liability Coverage to which no "other insurance" applies, the following shall apply:

**1.** We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend, when the duty to defend exists:

**a.** All expenses we incur.

**b.** Up to $2,000 for cost of bail bonds (including bonds for related traffic law violations) required because of an "occurrence" we cover. We do not have to furnish these bonds.

**c.** The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.

**d.** All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "suit", including actual loss of earnings up to $250 a day because of time off from work.

**e.** All court costs taxed against the insured in the "suit". However, these payments do not include attorneys' fees or attorneys' expenses taxed against the insured.

**f.** Prejudgment interest awarded against the insured on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.

**g.** All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the Limits Of Insurance.

**2.** When we have the right but not the duty to defend the insured and elect to participate in the defense, we will pay our own expenses but will not contribute to the expenses of the insured or the "underlying insurer".

**3.** If we defend an insured against a "suit" and an indemnitee of the insured is also named as a party to the "suit", we will defend that indemnitee if all of the following conditions are met:

**a.** The "suit" against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";

**b.** This insurance applies to such liability assumed by the insured;

**c.** The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same "insured contract";

**d.** The allegations in the "suit" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitees;

**e.** The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "suit" and agree that we can assign the same counsel to defend the insured and the indemnitee; and


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**f.** The indemnitee:

**(1)** Agrees in writing to:

**(a)** Cooperate with us in the investigation, settlement or defense of the “suit”;

**(b)** Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the “suit”;

**(c)** Notify any other insurer whose coverage is available to the indemnitee; and

**(d)** Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and

**(2)** Provides us with written authorization to:

**(a)** Obtain records and other information related to the “suit”; and

**(b)** Conduct and control the defense of the indemnitee in such “suit”.

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph **2.b.(1)** of Coverage **A** – Bodily Injury And Property Damage Liability in Section **II** – Umbrella Liability Coverage, such payments will not be deemed to be damages for “bodily injury” and “property damage” and will not reduce the Limits Of Insurance.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when we have used up the applicable limit of insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in Paragraph **f.** above are no longer met.

**SECTION IV - EXCLUSIONS APPLICABLE TO BOTH SECTION I AND SECTION II**

Excess Liability Coverage and Umbrella Liability Coverage do not apply to:

**1. Workers' Compensation And Similar Laws**

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

**2. ERISA**

Any obligation of the insured under the Employee Retirement Income Security Act (ERISA) of 1974 and any amendments thereto or any similar federal, state or local statute.

**3. Automobile Coverages**

**a.** Any loss, cost or expense payable under or resulting from any:

**(1)** First party physical damage coverage;

**(2)** No-fault law, personal injury protection or “auto” medical payments coverage;

**(3)** Uninsured or underinsured motorist laws; or

**b.** “Bodily injury” or “property damage” arising out of the ownership, maintenance or use of any “auto” which is not a “covered auto”.

**4. Asbestos**

The actual, alleged or threatened:

**a.** Inhalation of, ingestion of, or prolonged physical exposure to asbestos or products or work containing asbestos; or

**b.** Use of asbestos in “your work” or “your product” or the work or product of any person or organization for whom you may be legally responsible; or

**c.** Exposure to asbestos or products containing asbestos which are at any time removed from a building or a structure, transported, handled, stored, treated, disposed of, processed or manufactured by you or any person or any organization for whom you may be legally responsible.

**d.** Any loss, cost or expense arising out of any:


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**(1)** Request, demand or order that any insured or others test for, monitor, clean up, remove or contain, or in any way respond to or assess the effects of asbestos; or

**(2)** Claim or "suit" by or on behalf of any person, organization or governmental authority for damages because of testing for, monitoring, cleaning up or removing, containing or in any way responding to, or assessing the effects of asbestos.

**5. Pollution**

**a.** Any loss, cost or expense which would not have occurred in whole or part but for the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time; or

**b.** "Pollution cost or expense".

**6. Employment-Related Practices**

Loss to:

**a.** A person arising out of any:

**(1)** Refusal to employ that person;

**(2)** Termination of that person's employment; or

**(3)** Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination or malicious prosecution directed at that person; or

**b.** The spouse, child, parent, brother or sister of that person as a consequence of "bodily injury" or "personal and advertising injury" to that person at whom any of the employment-related practices described in Paragraphs **a.(1)**, **a.(2)** or **a.(3)** above is directed.

This exclusion applies:

**(a)** Whether the injury causing the event described in Paragraphs **a.(1)**, **a.(2)**, or **a.(3)** above occurs before employment or after employment of that person;

**(b)** Whether the insured may be liable as an employer or in any other capacity; and

**(c)** To any obligation to share damages with or repay someone else who must pay damages because of the injury.

**7. Nuclear Energy Liability Exclusion**

**a.** "Bodily injury" or "property damage" under any coverage:

**(1)** With respect to which an insured under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any other of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limits of liability; or

**(2)** Resulting from the "hazardous properties" of "nuclear material" and with respect to which:

**(a)** Any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or

**(b)** The insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.

**b.** Medical Expense or Medical Payments under any coverage, for expenses incurred with respect to "bodily injury" resulting from the "hazardous properties" of "nuclear material" and arising out of the operation of a "nuclear facility" by any person or organization.

**c.** Liability coverage under any coverage, for "bodily injury" or "property damage" resulting from the "hazardous properties" of "nuclear material", if:

**(1)** The "nuclear material"

**(a)** Is at any "nuclear facility" owned by, or operated by or on behalf of, an insured or


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**(b)** Has been discharged or dispersed therefrom;

**(2)** The "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, processed, stored, transported or disposed of by or on behalf of the insured; or

**(3)** The "bodily injury" or "property damage" arises out of the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion **(3)** applies only to "property damage" to such "nuclear facility" and any property thereat.

As used in this exclusion:

"Hazardous properties" include radioactive, toxic or explosive properties.

"Nuclear material" means "source material", "special nuclear material" or "by-product material".

"Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

"Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".

"Waste" means any waste material:

**(a)** Containing "by-product material" other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its "source material" content, and

**(b)** Resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

"Nuclear facility" means:

**(a)** Any "nuclear reactor";

**(b)** Any equipment or device designed or used for

**(i)** Separating the isotopes of uranium or plutonium,

**(ii)** Processing or utilizing "spent fuel", or

**(iii)** Handling, processing or packaging "waste";

**(c)** Any equipment or device used for the processing, fabricating or alloying of "special nuclear material" if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;

**(d)** Any structure, basin, excavation, premises or place prepared or used for storage or disposal of "waste";

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

"Nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

"Property damage" includes all forms of radioactive contamination of property.

**8. Lead Contamination**

**a.** The ingestion, inhalation or absorption of lead in any form; or

**b.** The presence of lead at your premises.

**9. Maritime**

**a.** A master or member of the crew of any vessel; or

**b.** Any person in work subject to the Longshore and Harbor Workers' Compensation Act (33 USC Section 901-950) or any amendment to that law;

including loss of consortium or claims from the estate of a deceased worker.


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**10. Subsidence Of Land**

The subsidence of land hazard caused by or attributable to any operations performed by or on behalf of the insured.

As respects this exclusion, subsidence of land means "property damage" caused by, resulting from, contributed to or aggravated by earth movement. Earth movement includes, but is not limited to, earthquake, landslide, earth sinking, earth rising or earth shifting.

**11. Fungi**

**a.** "Bodily injury", "property damage" or "personal and advertising injury" which would not have occurred in whole or in part but for the actual, alleged or threatened contact with, exposure to, inhalation of, ingestion of, absorption of, existence of, presence of, discharge, dispersal, seepage, migration, release, escape, growth or reproduction of "fungi";

**b.** Costs and expenses to investigate or defend any claim or "suit" or payment of any fine or penalty for Paragraph **a.** above.

**c.** Any loss, cost, expense, fine or penalty arising out of any:

**(1)** Claim, "suit", request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, abate, mitigate, remediate, dispose of, contain, treat, detoxify or neutralize, or in any way respond to, or assess the concentration or effects of "fungi", or

**(2)** Claim or "suit" for damages because of testing for, monitoring, cleaning up, removing, abating, mitigating, remediating, disposing of, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the concentration or effects of "fungi".

Exclusions **c.(1)** and **c.(2)** apply to any actual or alleged supervision, instructions, recommendations, warnings or advice given or which should have been given by any insured or others.

Exclusion **a.** through **c.** above apply to:

**(1)** "Bodily injury", "property damage" and "personal and advertising injury" regardless of whether such is included within the "products-completed operations hazard";

**(2)** Any obligation to share damages with or repay someone else who must pay damages; and

**(3)** "Fungi" existing, emanating from or moving anywhere indoors or outdoors.

The addition of this exclusion does not imply that other provisions, including but not limited to any pollution exclusion, do not also exclude coverage for "fungi" related injury, damage, expense, cost, loss, liability or legal obligation.

**12. Computer-Related And Other Electronic Problems (Including Products-Completed Operations)**

"Bodily injury", "property damage" or "personal and advertising injury", whether or not included in the "products-completed operations hazard" arising directly or indirectly out of:

**a.** Any actual or alleged failure, malfunction or inadequacy of:

**(1)** Any of the following, whether belonging to any insured or to others:

**(a)** Computer hardware, including microprocessors;

**(b)** Computer application software;

**(c)** Computer operating systems and related software;

**(d)** Computer networks;

**(e)** Microprocessors (computer chips) not part of any computer system; or

**(f)** Any other computerized or electronic equipment or components; or

**(2)** Any other products, and any services, data or functions that directly or indirectly use or rely upon, in any manner, any of these items listed in Paragraph **a.(1)** above due to the inability to correctly recognize, process, distinguish, interpret or accept the year 2000 and beyond.

**b.** Any advice, consultation, design, evaluation, inspection, installation, maintenance, repair, replacement or supervision provided or done by you or for you to determine, rectify or test for, any potential or actual problems described in Paragraph **a.(1)** above.


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**13. War**

"Bodily injury", "property damage" or "personal and advertising injury", however caused, arising, directly or indirectly, out of:

**a.** War, including undeclared or civil war; or

**b.** Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

**c.** Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

**14. Punitive Damages**

Punitive damages, exemplary damages, treble damages, or any damages resulting from the multiplication of compensatory damages, including any other fines or penalties. This exclusion does not apply if disallowed by statute.

**15. Recording And Distribution Of Material Or Information In Violation Of Law**

"Bodily injury", "property damage" or "personal and advertising injury" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

**a.** The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law;

**b.** The CAN-SPAM Act of 2003, including any amendment of or addition to such law;

**c.** The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transactions Act (FACTA); or

**d.** Any federal, state or local statute, ordinance or regulation, other than the TCPA, CAN-SPAM Act of 2003 or FCRA and their amendments and additions, that addresses, prohibits, or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

**SECTION V - WHO IS AN INSURED**

**1.** As respects Excess Liability Coverage:

Any person or organization that is an insured in any "underlying insurance" is an insured except as follows:

No person or organization is an insured with respect to the conduct of any current or past partnership, limited liability company, trust or joint venture that is not shown as a Named Insured in the Declarations.

**2.** As respects Umbrella Liability Coverage:

**a.** Except for liability arising out of the ownership, maintenance, or use of "covered autos":

**(1)** If you are designated in the Declarations as:

**(a)** An individual, you, your spouse and your family members are insureds, but only with respect to the conduct of a business of which you are the sole owner.

**(b)** A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.

**(c)** A partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.

**(d)** An organization other than a partnership, limited liability company or joint venture, you are an insured. Your "executive officers" and directors are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as your stockholders.

**(e)** A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.

**(2)** Each of the following is also an insured:

**(a)** Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company), or your managers (if you are a limited liability


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company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business, or your other "volunteer workers" while performing duties related to the conduct of your business. However, none of these "employees" or "volunteer workers" are insureds for:

**(i)** "Bodily injury" or "personal and advertising injury" to you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), or to a co-"employee" or "volunteer worker" while that co-"employee" or "volunteer worker" is either in the course of his or her employment or performing duties related to the conduct of your business; or

**(ii)** "Bodily injury" or "personal and advertising injury" to the spouse, child, parent, brother or sister of that co-"employee" or "volunteer worker" as a consequence of Paragraph **(a)(i)** above; or

**(iii)** "Bodily injury" or "personal and advertising injury" for which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraphs **(a)(i)** and **(ii)** above.

**(iv)** "Property damage" to property owned or occupied by, or used by, or rented or loaned to, in the care, custody or control of, or over which physical control is being exercised for any purpose by you, any of your "employees", "volunteer workers", any partner or member (if you are a partnership or joint venture), or any member (if you are a limited liability company).

**(b)** Any person (other than your "employee" or "volunteer worker"), or any organization while acting as your real estate manager.

**(c)** Any person or organization having proper temporary custody of your property if you die, but only:

**(i)** With respect to liability arising out of the maintenance or use of that property; and

**(ii)** Until your legal representative has been appointed.

**(d)** Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this policy.

**(3)** Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:

**(a)** Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;

**(b)** Coverage **A** does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and

**(c)** Coverage **B** does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization.

**b.** For liability arising out of the ownership, maintenance, or use of "covered autos":

**(1)** You are an insured.

**(2)** Anyone else while using with your permission a "covered auto" you own, hire, or borrow is also an insured except:

**(a)** The owner or anyone else from whom you hire or borrow a "covered auto". This exception does not apply if the "covered auto" is a trailer or semi-trailer connected to a "covered auto" you own.

**(b)** Your "employee" if the "covered auto" is owned by that "employee" or a member of his or her household.

**(c)** Someone using a "covered auto" while he or she is working in a business of selling, servicing, repairing, parking or storing "autos" unless that business is yours.

**(d)** Anyone other than your "employees", partners (if you are a partnership), members (if you are a limited liability company), or a lessee or borrower or any of their "employees", while moving property to or from a "covered auto".

**(e)** A partner (if you are a partnership), or a member (if you are a limited liability company) for a "covered auto" owned by him or her or a member of his or her household.

**(f)** "Employees" with respect to "bodily injury" to:


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**(i)** Any fellow “employee” of the insured arising out of and in the course of the fellow “employee's” employment or while performing duties related to the conduct of your business; or

**(ii)** The spouse, child, parent, brother or sister of that fellow “employee” as a consequence of Paragraph **(a)** above.

**(3)** Anyone liable for the conduct of an insured described above is also an insured, but only to the extent of that liability.

**c.** Any additional insured under any policy of “underlying insurance” will automatically be an insured under this insurance.

Subject to Section **VI** – Limits Of Insurance, if coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

**(1)** Required by the contract or agreement, less any amounts payable by any “underlying insurance”; or

**(2)** Available under the applicable Limits Of Insurance shown in the Declarations;

whichever is less.

Additional insured coverage provided by this insurance will not be broader than coverage provided by the “underlying insurance”.

No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

**SECTION VI - LIMITS OF INSURANCE**

**1.** The Limits Of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:

**a.** Insureds;

**b.** Claims made or “suits” brought or number of vehicles involved; or

**c.** Persons or organizations making claims or bringing “suits”.

**2.** The General Aggregate Limit is the most we will pay for the sum of all “ultimate net loss” under:

**a.** Coverage **A**, except “ultimate net loss” because of “bodily injury” and “property damage” included in the “products-completed operations hazard”; and

**b.** Coverage **A**, except “ultimate net loss” because of “bodily injury” and “property damage” arising out of the ownership, maintenance or use of a “covered auto”; and

**c.** Coverage **B.**

With respect to “underlying insurance” that provides aggregate limits separately per construction project or per location, the General Aggregate Limit will apply in the same manner that the Limit Of Insurance on the “underlying insurance” applies.

**3.** The Products-Completed Operations Aggregate Limit is the most we will pay because of “ultimate net loss” arising out of the “products-completed operations hazard”.

**4.** Subject to **2.** above, the Personal And Advertising Injury Limit is the most we will pay under Coverage **B** for the sum of all “ultimate net loss” because of all “personal and advertising injury” sustained by any one person or organization.

**5.** Subject to **2.** or **3.** above, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of all “ultimate net loss” under Coverage **A** because of all “bodily injury” and “property damage” arising out of any one “occurrence”.

**6.** As respects Excess Liability Coverage:

With respect to “underlying insurance” that provides coverage on the basis other than described in Paragraphs **2.** through **5.** above:

**a.** We will pay in the same manner as the applicable “underlying insurance” specifies payment.

**b.** Except with respect to any Aggregate Limit, the Each Occurrence Limit in this policy applies in the same manner that the Limit Of Insurance on the “underlying insurance” applies.


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**c.** If the “underlying insurance” is subject to an Aggregate Limit, the General Aggregate Limit in this policy applies in the same manner that the Aggregate Limit on the “underlying insurance” applies.

This provision applies separately to each coverage listed on the Schedule Of Underlying Insurance.

**7.** Subject to **4., 5.,** or **6.** above, whichever applies, Excess Liability Coverage is excess of an amount not less than the amount shown in the Schedule Of Underlying Insurance for the applicable “underlying insurance”, except:

**a.** If the Limit Of Insurance available to the insured under the applicable “underlying insurance” has been reduced:

**(1)** Solely by the payment of claims or “suits”; and

**(2)** Subject to the Maintenance Of Underlying Insurance Condition in Section **VII** - Conditions;

this coverage shall be excess over the reduced Limit of Insurance.

**b.** If the Limit Of Insurance available to the insured under the applicable “underlying insurance” has been exhausted:

**(1)** Solely by the payment of claims or “suits”; and

**(2)** Subject to the Maintenance Of Underlying Insurance Condition in Section **VII** - Conditions;

this coverage will provide coverage to the extent provided in such “underlying insurance”.

Both **a.** and **b.** above only apply until the inception of the next succeeding annual policy period of the “underlying insurance”.

**8.** Subject to **4., 5.,** or **6.** above, whichever applies, if the Limit Of Insurance available to the insured under the applicable “underlying insurance” is higher than the amount shown in the Schedule Of Underlying Insurance, then Excess Liability Coverage is excess of that higher amount.

**9.** Subject to **4., 5.,** or **6.** whichever applies, Umbrella Liability Coverage is excess of the amount shown in the Declarations for the insured's “self-insured retention”, and over any valid and collectible “other insurance” available to the insured.

**10.** If there is “underlying insurance” with a policy period that is nonconcurrent with the policy period of this policy, the “retained limit(s)” will only be reduced or exhausted by payments for:

**a.** “Bodily injury” or “property damage” which occurs during the policy period of this policy; or

**b.** “Personal and advertising injury” for offenses that are committed during the policy period of this policy.

However, if any “underlying insurance” is written on a claims-made basis, the “retained limit(s)” will only be reduced or exhausted by claims for that insurance that are made during the policy period, or any Extended Reporting Period attached to the “underlying insurance”.

The Limits Of Insurance of this policy apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after one or more 12 month periods for a period of less than 12 months. In that case the additional period will be deemed as part of the last preceding period for purposes of determining the Limits Of Insurance.

**SECTION VII - CONDITIONS**

**1. Appeals**

If the “underlying insurer” or insured elects not to appeal a judgment in excess of the “retained limit” on a policy of “underlying insurance” or “other insurance”, we may do so at our expense. We will also pay for taxable court costs, pre- and postjudgment interest and disbursements associated with such appeal. In no event will this provision increase our liability beyond the applicable Limits Of Insurance described in Section **VI** – Limits Of Insurance.

**2. Bankruptcy**

**a.** Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this policy.

**b.** Bankruptcy or insolvency of the “underlying insurer” will not relieve us of our obligations under this policy.

However, this insurance will not replace the “underlying insurance” in the event of bankruptcy or insolvency of the “underlying insurer”. This insurance will apply as if the “underlying insurance” were in full effect.

**3. Duties In The Event Of An Occurrence, Offense, Claim Or Suit**


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**a.** You must see to it that we are notified as soon as practicable of an "occurrence" or an offense, regardless of the amount, which may result in a claim. To the extent possible, notice should include:

**(1)** How, when and where the "occurrence" or offense took place;

**(2)** The names and addresses of any injured persons and witnesses; and

**(3)** The nature and location of any injury or damage arising out of the "occurrence" or offense.

**b.** If a claim is made or "suit" is brought against any insured, you must:

**(1)** Immediately record the specifics of the claim or "suit" and the date received; and

**(2)** Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or "suit" as soon as practicable.

**c.** You and any other involved insured must:

**(1)** Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";

**(2)** Authorize us to obtain records and other information;

**(3)** Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and

**(4)** Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.

**d.** No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

**4. Legal Action Against Us**

No person or organization has a right under this policy:

**a.** To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or

**b.** To sue us on this policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

**5. Other Insurance**

**a.** This insurance is excess over, and shall not contribute with any of the "other insurance", whether primary, excess, contingent or on any other basis. This condition will not apply to insurance specifically written as excess over this policy.

When this insurance is excess, we will have no duty under Coverage **A** or **B** to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

**b.** When this insurance is excess over "other insurance", we will pay only our share of the "ultimate net loss" that exceeds the sum of:

**(1)** The total amount that all such "other insurance" would pay for the loss in the absence of the insurance provided under this policy; and

**(2)** The total of all deductible and "self-insured retention" amounts under all that "other insurance".

**c.** If there is any:

**(1)** Insurance available to the insured on an extended reporting period basis under either "underlying insurance" or "other insurance"; or

**(2)** Insurance available to the insured on a retroactive basis under either "underlying insurance" or "other insurance";

this policy shall apply as excess of and not contributing with such insurance.

**d.** If this policy and any other Excess Liability and/or Umbrella Liability policy issued to you by this company or any other affiliated member company(ies) applies to the same "occurrence", the maximum limit of our liability under all such policies combined shall not exceed the highest applicable limit of insurance under any one policy among them.

**6. Premium Audit**

**a.** We will compute all premiums for this policy in accordance with our rules and rates.

**b.** Premium shown in this policy as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.

**c.** The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

**7. Representations Or Fraud**

By accepting this policy, you agree:

**a.** The statements in the Declarations are accurate and complete;

**b.** Those statements are based upon representations you made to us;

**c.** We have issued this policy in reliance upon your representations; and

**d.** This policy is void in any case of fraud by you as it relates to this policy or any claim under this policy.

**8. Separation Of Insureds**

Except with respect to the Limits Of Insurance, and any rights or duties specifically assigned to the first Named Insured, this insurance applies:

**a.** As if each Named Insured were the only Named Insured; and

**b.** Separately to each insured against whom a claim is made or a "suit" is brought.

**9. Transfer Of Rights Of Recovery Against Others To Us**

If the insured has rights to recover all or part of any payment we have made under this policy, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

**10. Changes In Underlying Insurance**

**a.** If any "underlying insurance" is changed after the effective date of this policy, and

**(1)** Because of the change, the insurance under Excess Liability Coverage would apply to claims made or "suits" brought for which insurance would not have applied in the absence of the change; or

**(2)** Because of the change, the insurance under Umbrella Liability Coverage would apply to insurance that would have applied under the Excess Liability Coverage in the absence of the change;

you must notify us promptly.

We may, at our discretion, adjust the premium to reflect the changed exposures if the "underlying insurance" is changed.

**b.** Your failure to comply with Paragraph **a.** above, shall not invalidate this policy, but in the event of such failure, this policy shall apply in the same manner as though the "underlying insurance" had not been changed.

**11. When We Do Not Renew**

If we decide not to renew this policy, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.


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**12. Loss Payable**

Liability under this policy does not apply to a given claim unless and until:

**a.** The insured or insured's "underlying insurer" has become obligated to pay the "retained limit"; and

**b.** The obligation of the insured to pay the "ultimate net loss" in excess of the "retained limit" has been determined by a final settlement or judgment or written agreement among the insured, claimant and us.

**13. Transfer Of Defense**

When the underlying limits of insurance have been used up in the payment of judgments or settlements, the duty to defend will be transferred to us. We will cooperate in the transfer of control to us of any outstanding claims or "suits" seeking damages to which this insurance applies which would have been covered by the "underlying insurance" had the applicable limit not been used up.

**14. Maintenance Of Underlying Insurance**

The "underlying insurance" and limits listed in the Schedule Of Underlying Insurance in the Declarations shall remain in full effect throughout the policy period except for reduction of the aggregate limit due to payment of claims, settlements or judgments.

Failure to maintain "underlying insurance" and limits will not invalidate insurance under this policy, but the insurance under this policy will apply as if the "underlying insurance" were in full effect.

You must notify us as soon as practicable when any "underlying insurance" is no longer in effect.

**15. Expanded Coverage Territory**

**a.** If a "suit" is brought in a part of the "coverage territory" that is outside the United States of America (including its territories and possessions), Puerto Rico or Canada, and we are prevented by law or otherwise, from defending the insured, the insured will initiate a defense of the "suit". We will reimburse the insured, under Supplementary Payments, for any reasonable and necessary expenses incurred for the defense of a "suit" seeking damages to which this insurance applies, that we would have paid had we been able to exercise our right and duty to defend.

If the insured becomes legally obligated to pay sums because of damages to which this insurance applies in a part of the "coverage territory" that is outside the United States of America (including its territories and possessions), Puerto Rico or Canada, and we are prevented by law, or otherwise, from paying such sums on the insured's behalf, we will reimburse the insured for such sums.

**b.** All payments or reimbursements we make for damages because of judgments or settlements will be made in U.S. currency at the prevailing exchange rate at the time the insured became legally obligated to pay such sums. All payments or reimbursements we make for expenses under Supplementary Payments will be made in U.S. currency at the prevailing exchange rate at the time the expenses were incurred.

**c.** Any disputes between you and us as to whether there is coverage under this policy must be filed in the courts of the United States of America (including its territories and possessions), Puerto Rico or Canada.

**d.** The insured must fully maintain any coverage required by law, regulation or other governmental authority during the policy period, except for reduction of the aggregate limits due to payments of claims, judgments or settlements.

Failure to maintain such coverage required by law, regulation or other governmental authority will not invalidate this insurance. However, this insurance will apply as if the required coverage by law, regulation or other governmental authority was in full effect.

**16. Cancellation**

**a.** The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to us advance written notice of cancellation.

**b.** We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:

**(1)** 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or

**(2)** 30 days before the effective date of cancellation if we cancel for any other reason.

**c.** We will mail or deliver our notice to the first Named Insured's last mailing address known to us.


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**d.** Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.

**e.** If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.

**f.** If notice is mailed, proof of mailing will be sufficient proof of notice.

**17. Changes**

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

**18. Examination Of Your Books And Records**

We may examine and audit your books and records at any time as they relate to this policy. There is no time limit on this provision.

**19. Inspections And Surveys**

**a.** We have the right to:

**(1)** Make inspections and surveys at any time;

**(2)** Give you reports on the conditions we find; and

**(3)** Recommend changes.

**b.** We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:

**(1)** Are safe or healthful; or

**(2)** Comply with laws, regulations, codes or standards.

**c.** Paragraphs **a.** and **b.** of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.

**d.** Paragraph **b.** of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under state or municipal statutes, ordinances or regulations, of boilers, pressure vessels or elevators.

**20. Premiums**

The first Named Insured shown in the Declarations:

**a.** Is responsible for the payment of all premiums; and

**b.** Will be the payee for any return premiums we pay.

**21. Your Right To Claim And Occurrence Information**

We will provide the first Named Insured shown in the Declarations the following information relating to this and any preceding Excess/Umbrella Policy, over an “underlying insurance” claims-made policy, we have issued to you during the previous three years:

**a.** A list or other record of each “occurrence”, not previously reported to any other insurer, of which we were notified in accordance with Paragraph **3.a.** Duties In The Event Of An Occurrence, Offense, Claim Or Suit in Section **VII** - Conditions. We will include the date and brief description of the “occurrence” if that information was in the notice we received.

**b.** A summary by policy year, of payments made and amounts reserved, stated separately, under any applicable General Aggregate Limit and Products-Completed Operations Aggregate Limit.

Amounts reserved are based on our judgment. They are subject to change and should not be regarded as ultimate settlement values.

You must not disclose this information to any claimant or any claimant's representative without our consent.


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If we cancel or elect not to renew this policy, we will provide such information no later than 30 days before the date of policy termination. In other circumstances, we will provide this information only if we receive a written request from the first Named Insured within 60 days after the end of the policy period. In this case, we will provide this information within 45 days of receipt of the request.

We compile claim and "occurrence" information for our own business purposes and exercise reasonable care in doing so. In providing this information to the first Named Insured, we make no representations or warranties to insureds, insurers, or others to whom this information is furnished by or on behalf of any insured. Cancellation or nonrenewal will be effective even if we inadvertently provide inaccurate information.

**SECTION VIII - DEFINITIONS**

**1.** "Advertisement" means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:

**a.** Notices that are published include material placed on the Internet or on similar electronic means of communication; and

**b.** Regarding websites, only that part of a website that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.

**2.** "Auto" means:

**a.** A land motor vehicle, trailer or semi-trailer designed for travel on public roads, including any attached machinery or equipment; or

**b.** Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle law where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

**3.** "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death, disability, mental injury, mental anguish, fright or shock resulting from any of these at any time; and care, loss of services or death resulting at any time from the "bodily injury" claimed by any person or organization.

**4.** "Coverage territory" means the United States of America (including its territories and possessions), Puerto Rico and Canada, or anywhere in the world if the "suit" for damages is filed in the territory described herein.

**5.** "Covered auto" means only those "autos" to which "underlying insurance" applies.

**6.** "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".

**7.** "Executive officer" means a person holding any of the officer positions created by your charter, constitution, by-laws or any other similar governing document.

**8.** "Fungi" means any type or form of fungus, including mold or mildew and any mycotoxins, spores, scents or by-products produced or released by fungi .

**9.** "Impaired property" means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:

**a.** It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or

**b.** You have failed to fulfill the terms of a contract or agreement;

if such property can be restored to use by the repair, replacement, adjustment or removal of "your product" or "your work", or your fulfilling the terms of the contract or agreement.

**10.** "Insured contract" means:

**a.** A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";

**b.** A sidetrack agreement;

**c.** Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;


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**d.** An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;

**e.** An elevator maintenance agreement;

**f.** That part of any contract or agreement entered into, as a part of your business, pertaining to the rental or lease by you or any of your "employees" of any "auto".

However, such contract or agreement shall not be considered an "insured contract" to the extent that it obligates you or any of your "employees" to pay for "property damage" to any "auto" rented or leased by you or any of your "employees".

**g.** That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort Liability means a liability that would be imposed by law in the absence of any contract or agreement.

An "insured contract" does not include that part of any contract or agreement:

**(1)** That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road beds, tunnel, underpass or crossing;

**(2)** That indemnifies an architect, engineer or surveyor for injury or damage arising out of:

**(a)** Preparing, approving or failing to prepare or approve maps, drawings, opinions, reports, surveys, change orders, designs or specifications; or

**(b)** Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage;

**(3)** Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in Paragraph **(2)** above and supervisory, inspection, architectural or engineering services;

**(4)** That pertains to the loan, lease or rental of any "auto" to you or any of your "employees" if the "auto" is loaned, leased or rented with a driver;

**(5)** That holds a person or organization engaged in the business of transporting property by "auto" for hire harmless for your use of a "covered auto" over a route or territory that person or organization is authorized to serve by public authority; or

**(6)** That indemnifies any person or organization for damage by fire to premises rented or loaned to you.

**11.** "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".

**12.** "Loading or unloading" means the handling of property:

**a.** After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or "auto";

**b.** While it is in or on an aircraft, watercraft or "auto"; or

**c.** While it is being moved from an aircraft, watercraft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "auto".

**13.** "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

**a.** Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;

**b.** Vehicles maintained for use solely on or next to your premises;

**c.** Vehicles that travel on crawler treads;

**d.** Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:

**(1)** Power cranes, shovels, loaders, diggers or drills; or


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**(2)** Road construction or resurfacing equipment such as graders, scrapers or rollers;

**e.** Vehicles not described in **a.**, **b.**, **c.**, or **d.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:

**(1)** Air compressors, pumps and generators, including spraying, welding, building cleaning, geological exploration, lighting and well servicing equipment; or

**(2)** Cherry pickers and similar devices used to raise or lower workers;

**f.** Vehicles not described in **a.**, **b.**, **c.**, or **d.** above maintained primarily for purposes other than the transportation of persons or cargo.

However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

**(1)** Equipment designed primarily for:

**(a)** Snow removal;

**(b)** Road maintenance, but not construction or resurfacing;

**(c)** Street cleaning;

**(2)** Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

**(3)** Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, "mobile equipment" does not include any land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

**14.** "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

**15.** "Other insurance" means insurance, other than "underlying insurance" or insurance that is specifically purchased by the Named Insured to be excess of the insurance afforded by this policy, which is available to the insured for damage to which this policy applies.

**16.** "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:

**a.** False arrest, detention or imprisonment;

**b.** Malicious prosecution;

**c.** The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;

**d.** Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services; or

**e.** Oral or written publication, in any manner, of material that violates a person's right of privacy;

**f.** The use of another's advertising idea in your "advertisement";

**g.** Infringing upon another's copyright, trade dress, or slogan in your "advertisement".

**17.** "Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including, but not limited to, smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

**18.** "Pollution cost or expense" means any loss, cost or expense arising out of any:

**a.** Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to or assess the effects of "pollutants";


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**b.** Claim or "suit" by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants"; and

**c.** Any fines, penalties, or other costs or assessments of any kind and for any purpose arising from any contamination which you or any insured is directed to pay.

**19.** "Products-completed operations hazard":

**a.** Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:

**(1)** Products that are still in your physical possession; or

**(2)** Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:

**(a)** When all of the work called for in your contract has been completed.

**(b)** When all of work to be done at the job site has been completed if your contract calls for work at more than one job site.

**(c)** When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete will be treated as completed.

**b.** Does not include "bodily injury" or "property damage" arising out of:

**(1)** The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you and the condition was created by the "loading or unloading" of that vehicle by any insured;

**(2)** The existence of tools, uninstalled equipment or abandoned or unused materials; or

**(3)** Products or operations for which the classification, listed in a Schedule on a policy of "underlying insurance", states that products-completed operations are included within the premises-operations class or are subject to the General Aggregate Limit.

**20.** "Property damage" means:

**a.** Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or

**b.** Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

For the purposes of this insurance, with respect to other than the ownership, maintenance or use of "covered autos", electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

With respect to the ownership, maintenance or use of "covered autos", "property damage" also includes "pollution cost or expense"; but only to the extent that coverage exists under the "underlying insurance" or would have existed but for the exhaustion of the underlying limits.

**21.** "Retained limit" means the available limits of "underlying insurance" scheduled in the Declarations or the "self-insured retention", whichever applies.

**22.** "Self-insured retention" means the dollar amount listed in the Declarations that will be paid by the insured before this insurance becomes applicable only with respect to "occurrences" or offenses not covered by the "underlying insurance". The "self-insured retention" does not apply to "occurrences" or offenses which would have been covered by "underlying insurance" but for the exhaustion of the applicable underlying limits.

**23.** "Suit" means a civil proceeding in which damage because of "bodily injury", "property damage", or "personal and advertising injury" to which this insurance applies are alleged. "Suit" includes:


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**a.** An arbitration proceeding in which such damages are claimed and to which the insured must submit or do submit with our consent; or

**b.** Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent or the "underlying insurer's" consent.

**24.** "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

**25.** "Ultimate net loss" means the total sum, after reduction for recoveries or salvages collectible, that the insured becomes legally obligated to pay as damages by reason of settlement or judgments or any arbitration or other alternate dispute method entered into with our consent or the "underlying insurer's" consent.

**26.** "Underlying insurance" means any policies of insurance listed in the Declarations under the Schedule Of Underlying Insurance.

**27.** "Underlying insurer" means any insurer who provides any policy of insurance listed in the Schedule Of Underlying Insurance.

**28.** "Volunteer worker" means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.

**29.** "Your product(s)":

**a.** Means:

**(1)** Any goods or products other than real property, manufactured, sold, handled, distributed or disposed of by:

**(a)** You;

**(b)** Others trading under your name; or

**(c)** A person or organization whose business or assets you have acquired; and

**(2)** Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

**b.** Includes:

**(1)** Warranties or representations made at any time with respect to fitness, quality, durability, performance or use of "your product"; and

**(2)** The providing of or failure to provide warnings or instructions.

**c.** Does not include vending machines or other property rented to or located for the use of others but not sold.

**30.** "Your work":

**a.** Means:

**(1)** Work or operations performed by you or on your behalf; and

**(2)** Materials, parts or equipment furnished in connection with such work or operations.

**b.** Includes:

**(1)** Warranties or representations made at any time with respect to fitness, quality, durability, performance or use of "your work"; and

**(2)** The providing of or failure to provide warnings or instructions.


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# MARKEL INSURANCE COMPANY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## TRADE OR ECONOMIC SANCTIONS

The following is added to this policy:

**Trade Or Economic Sanctions**

This insurance does not provide any coverage, and we (the Company) shall not make payment of any claim or provide any benefit hereunder, to the extent that the provision of such coverage, payment of such claim or provision of such benefit would expose us (the Company) to a violation of any applicable trade or economic sanctions, laws or regulations, including but not limited to, those administered and enforced by the United States Treasury Department's Office of Foreign Assets Control (OFAC).

All other terms and conditions remain unchanged.

# Markel Insurance Company

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## UNIMPAIRED AGGREGATE

This endorsement modifies insurance provided under the following:

EXCESS/UMBRELLA POLICY

It is agreed that the aggregate limits on "underlying insurance" shall be unimpaired as of the inception date of this policy. Only "occurrences" that take place during the policy period of this policy shall be considered in determining the extent of any exhaustion of the aggregate limits on "underlying insurance."

# Markel Insurance Company

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## EXCLUSION OF CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

EXCESS/UMBRELLA POLICY

This endorsement applies to locations in the following states:

**A.** The following exclusion is added:

This insurance does not apply to:

**TERRORISM**

Any injury or damage arising, directly or indirectly, out of "a certified act of terrorism".

**B.** The following definitions are added:

**1.** For the purposes of this endorsement, "any injury or damage" means any injury or damage covered under any Coverage Part to which this endorsement is applicable, and includes but is not limited to "bodily injury", "property damage", "personal and advertising injury", "injury" or "environmental damage" as may be defined in any applicable Coverage Part.

**2.** "Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

**a.** The act resulted in insured losses in excess of $5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and

**b.** The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

**C.** The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this Coverage Part.

All other terms and conditions remain unchanged.


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# MARKEL INSURANCE COMPANY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## EXCLUSION – CYBER INCIDENT, DATA COMPROMISE, AND VIOLATION OF STATUTES RELATED TO PERSONAL DATA

This endorsement modifies insurance provided under the following:

EXCESS/UMBRELLA POLICY

**A.** The following exclusion is added to Paragraph **2.** Exclusions under Section **IV** – Exclusions Applicable To Both Section I And Section II, and all insuring agreements added to this policy by separate endorsement other than an endorsement described in Paragraph **C.** below:

Excess Liability Coverage and Umbrella Liability Coverage do not apply to:

**Cyber Incident, Data Compromise, And Violation Of Statutes Related To Personal Data**

Damages caused by, arising out of, or in any way involving, directly or indirectly:

**a.** The loss of, loss of use of, corruption of, inability to access, or reduction in functionality of a "computer system", including, but not limited to:

**(1)** Damage to or loss of data occurring on a "computer system";

**(2)** Unauthorized access of a "computer system";

**(3)** Computer malware on a "computer system";

**(4)** Human error affecting a "computer system";

**(5)** System failure occurring on a "computer system";

**(6)** A defect of a "computer system";

**(7)** Social engineering, including, but not limited to, any priming, pretexting, spoofing, or other fraudulent, manipulative, or deceptive communication; or

**(8)** Cyber extortion;

**b.** Any:

**(1)** Access to or disclosure of (whether such access or disclosure is authorized or unauthorized); or

**(2)** Theft, alteration, or corruption of;

any person's or organization's confidential, intellectual, or proprietary information or data, including, but not limited to, "personal data", patents, trade secrets, processing methods, customer lists, or any other type of nonpublic information; or

**c.** Any action or omission that violates or is alleged to violate any federal, state, or local statute, law, rule, ordinance, or regulation that addresses, prohibits, regulates, or limits the printing, interception, dissemination, disposal, collecting, recording, sending, transmitting, communicating, distribution, sharing, sale, storage, retaining, receiving, or protection of "personal data", including, but not limited to:

**(1)** The Illinois Biometric Information Privacy Act (BIPA);

**(2)** The California Consumer Privacy Act (CCPA);

**(3)** The California Invasion Of Privacy Act (CIPA);

**(4)** The New York Stop Hacks and Improve Electronic Data Security Act (SHIELD Act);

**(5)** The European Union General Data Protection Regulation (GDPR); or

**(6)** Any similar or related federal, state, or local statute, law, rule, ordinance, or regulation;

including any amendments thereto.

This exclusion applies even if damages are claimed for notification costs, credit monitoring expenses, forensic expenses, public relations expenses, costs associated with replacement of payment cards, fines, penalties, loss of use of property that has not been physically damaged, or any other loss, cost, or expense incurred by you or others arising out of that which is excluded above

However, this exclusion does not apply to damages because of "bodily injury" or physical damage to tangible property of others. For the purpose of this exclusion, electronic data is not tangible property. The insurance afforded by this exception is excess over any other valid and collectible insurance available to the insured, whether primary, excess, contingent, or issued on any other basis. This does not apply to any insurance policy written specifically to apply in excess of this policy.

As used in this exclusion, electronic data means information, facts, or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices, or any other media which are used with electronically controlled equipment.

**B.** Exclusion **2.n.** Access Or Disclosure Of Confidential Or Personal Information And Data-related Liability under Section **II** – Umbrella Liability Coverage, Coverage **A** – Bodily Injury And Property Damage Liability and Exclusion **2.o.** Access Or Disclosure Of Confidential Or Personal Information under Section **II** – Umbrella Liability Coverage, Coverage **B** – Personal And Advertising Injury Liability are deleted in their entirety.

**C.** If this Policy contains an endorsement adding an insuring agreement that specifically provides coverage that is excluded in Paragraph **A.** above, then the exclusion added by this endorsement does not apply to such insuring agreement solely to the extent of the coverage provided by such endorsement.

**D.** The following definitions are added to Section **VIII** – Definitions:

"Computer system" means computer hardware, firmware, software, or any components thereof.

"Personal data" means information that identifies, relates to, describes, is capable of being associated with, or could reasonably be linked to a particular person or household, including, but not limited to:

**a.** Identifiers such as a real name, alias, postal address, unique personal identifier, online identifier, Internet Protocol address, email address, password, account name, social security number, driver's license or state identification card number, passport number, telephone number, insurance policy number, employment, employment history, bank account number, credit card number, debit card number, or any other financial information, medical information, or health insurance information, or other similar identifiers, characteristics, or descriptors;

**b.** Commercial information, including records of personal property, products, or services purchased, obtained, or considered, transactions occurring over a peer-to-peer electronic cash system, or other purchasing or consuming histories or tendencies;

**c.** Biometric data or information (such as a fingerprint, voice print, retina or iris image, or other unique physical representation or digital representation of biometric data);

**d.** Internet or other electronic network activity information, including, but not limited to, browsing history, search history, and information regarding a person's or household's interaction with an internet website, application, or advertisement;

**e.** Geolocation data;

**f.** Audio, electronic, visual, thermal, olfactory, or similar information;

**g.** Professional or employment-related information that is not publicly available;

**h.** Education information, defined as information that is not publicly available personally identifiable information as defined in the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. section 1232g; 34 CFR Part 99)

including any amendments thereto;

**i.** Identifiers set forth in any state or federal consumer protection or privacy statute or law including, but not limited to, the identifiers shown in Paragraphs **a.** through **h.** above; or

**j.** Inferences drawn from any of the identifiers shown in Paragraphs **a.** through **i.** above to create a profile about a person or household reflecting such person's or household's preferences, characteristics, psychological trends, predispositions, behavior, attitudes, intelligence, abilities, or aptitudes.

All other terms and conditions remain unchanged.

# MARKEL INSURANCE COMPANY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## EXCLUSION – ABUSE, MOLESTATION, OR EXPLOITATION

This endorsement modifies insurance provided under the following:

EXCESS/UMBRELLA POLICY

The following exclusion is added to Section **IV** – Exclusions Applicable To Both Section **I** and Section **II**:

Excess Liability Coverage and Umbrella Liability Coverage do not apply to:

**Abuse, Molestation, Or Exploitation**

Any liability, claim, "suit", damages, or injury of any type, including but not limited to, "bodily injury", "property damage", and "personal and advertising injury", arising out of or in any way related to abuse, molestation, or exploitation in any form, whether threatened or actual, including but not limited to physical or sexual abuse, molestation, or exploitation.

This exclusion applies to all claims, "suits", and causes of action, even if the claim, "suit", or cause of action against the insured alleges:

**a.** Negligence or other wrongdoing in the employment, investigation, supervision, training, or retention of any person;

**b.** Improper reporting to the proper authorities or failure to so report;

**c.** Assault or battery;

**d.** Intentional or negligent infliction of emotional distress, pain, or suffering;

**e.** Defamation, libel, or slander;

**f.** Professional malpractice or negligence of any kind;

**g.** Corporal punishment; or

**h.** Violations of any statute or ordinance.

All other terms and conditions remain unchanged.

# Markel Insurance Company

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## CALIFORNIA AMENDATORY ENDORSEMENT

This endorsement modifies insurance provided under the following:

EXCESS/UMBRELLA POLICY

**A.** Paragraph **b.** of the **Cancellation** Condition of **Section VII – Conditions** is replaced by the following:

**b. All Policies In Effect For 60 Days Or Less**

If this policy has been in effect for 60 days or less, and is not a renewal of a policy we have previously issued, we may cancel this policy by mailing or delivering to the first Named Insured, at the mailing address shown in the policy, and to the producer of record, advance written notice of cancellation, stating the reason for cancellation, at least:

**(1)** 10 days before the effective date of cancellation if we cancel for:

**(a)** Nonpayment of premium; or

**(b)** Discovery of fraud by:

**(i)** Any insured or his or her representative in obtaining this insurance; or

**(ii)** You or your representative in pursuing a claim under this policy.

**(2)** 30 days before the effective date of cancellation if we cancel for any other reason.

**B.** The following is added to the **Cancellation** Condition of **Section VII - Conditions:**

**g. All Policies In Effect For More Than 60 Days**

**(1)** If this policy has been in effect for more than 60 days, or is a renewal of a policy we issued, we may cancel this policy only upon the occurrence, after the effective date of the policy, of one or more of the following:

**(a)** Nonpayment of premium, including payment due on a prior policy we issued and due during the current policy term covering the same risks.

**(b)** Discovery of fraud or material misrepresentation by:

**(i)** Any insured or his or her representative in obtaining this insurance; or

**(ii)** You or your representative in pursuing a claim under this policy.

**(c)** A judgment by a court or an administrative tribunal that you have violated a California or Federal law, having as one of its necessary elements an act which materially increases any of the risks insured against.

**(d)** Discovery of willful or grossly negligent acts or omissions, or of any violations of state laws or regulations establishing safety standards, by you or your representative, which materially increase any of the risks insured against.

**(e)** Failure by you or your representative to implement reasonable loss control requirements, agreed to by you as a condition of policy issuance, or which were conditions precedent to our use of a particular rate or rating plan, if that failure materially increases any of the risks insured against.

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**(f)** A determination by the Commissioner of Insurance that the:

**(i)**Loss of, or changes in, our reinsurance covering all or part of the risk would threaten our financial integrity or solvency; or

**(ii)** Continuation of the policy coverage would:

**1)** Place us in violation of California law or the laws of the state where we are domiciled; or

**2)** Threaten our solvency.

**(g)** A change by you or your representative in the activities or property of the commercial or industrial enterprise, which results in a materially added, increased or changed risk, unless the added, increased or changed risk is included in the policy.

**h.** We will mail or deliver advance written notice of cancellation, stating the reason for cancellation, to the first Named Insured, at the mailing address shown in the policy, and to the producer of record, at least:

**(1)** 10 days before the effective date of cancellation if we cancel for a reason listed in Paragraph **g.(1)(a)** or **g.(1)(b);** or

**(2)** 30 days before the effective date of cancellation if we cancel for any other reason listed in Paragraph **g.(1).**

**C.** The **When We Do Not Renew** Condition of **Section VII – Conditions** is replaced by the following:

**a.** Subject to the provisions of Paragraphs **b.** below, if we elect not to renew this policy, we will mail or deliver written notice stating the reason for nonrenewal to the first Named Insured shown in the Declarations and to the producer of record, at least 60 days, but not more than 120 days, before the expiration or anniversary date.

We will mail or deliver our notice to the first Named Insured, and to the producer of record, at the mailing address shown in the policy.

**b.** We are not required to send notice of nonrenewal in the following situations:

**(1)** If the transfer or renewal of a policy, without any changes in terms, conditions, or rates, is between us and a member of our insurance group.

**(2)** If the policy has been extended for 90 days or less, provided that notice has been given in accordance with Paragraph **a.** above.

**(3)** If you have obtained replacement coverage, or if the first Named Insured has agreed, in writing, within 60 days of the termination of the policy, to obtain that coverage.

**(4)** If the policy is for a period of no more than 60 days and you are notified at the time of issuance that it will not be renewed.

**(5)** If the first Named Insured requests a change in the terms or conditions or risks covered by the policy within 60 days of the end of the policy period.

**(6)** If we have made a written offer to the first Named Insured, in accordance with the timeframes shown in Paragraph **a.** above, to renew the policy under changed terms or conditions or at an increased premium rate, when the increase exceeds 25%.

All other terms and conditions remain unchanged.

# Markel Insurance Company

**THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF YOUR POLICY IN RESPONSE TO THE DISCLOSURE REQUIREMENTS OF THE TERRORISM RISK INSURANCE ACT. THIS ENDORSEMENT DOES NOT GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.**

## CONFIRMATION OF EXCLUSION OF CERTIFIED ACTS OF TERRORISM COVERAGE – TERRORISM RISK INSURANCE ACT

**SCHEDULE**

| | |
|---|---|
| Terrorism Premium: | $ 0 |
| Federal Share Of Terrorism Losses: | 80% |

**Disclosure Of Premium**

We have notified you that under the Terrorism Risk Insurance Act we must make certified acts of terrorism coverage available in the policies we offer. At that time we advised you that the premium for such terrorism coverage would be the amount shown in the Schedule of this notice.

**Disclosure Of Federal Participation In Payment Of Terrorism Losses**

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. The federal share equals a percentage (as shown in the Schedule of this notice) of that portion of the amount of such insured losses that exceeds the applicable insurer retention. However, if aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed $100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds $100 billion.

If you have not indicated to us or your agent that certified acts of terrorism coverage is desired, a certified act of terrorism exclusion will be attached to your policy and we will not charge your policy for terrorism coverage.

If you desire to purchase terrorism coverage, please contact us or your agent.


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